

Court No. - 21

Case :- WRIT - C No. - 4201 of 2023

Petitioner :- Shiv Shankar Yadav

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anil Kumar Yadav, Ajeet Singh, Kashinath Yadav

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Counsel for the respondents 2 and 3 prays for and is granted time to obtain instructions.

List as fresh on 14.2.2023.

(Syed Qamar Hasan Rizvi J.)

(Manoj Kumar Gupta, J.)

Order Date :- 7.2.2023

skv

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Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anil Kumar Yadav, Ajeet Singh, Kashinath Yadav

Counsel for Respondent :- C.S.C., Samir Srivastava, Udit Chandra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Short counter affidavit filed by learned counsel for the respondent no. 3 is taken on record.

Heard Shri Anil Kumar Yadav, learned Counsel for the petitioner and Shri Udit Chandra, learned counsel for the respondent no. 3 Purvanchal Vidyut Vitran Nigam Ltd.

The present writ petition has been preferred for the following relief:-

"i. Issue a writ, order or direction in the nature of certiorari quashing the impugned order dated 15.12.2022 passed by the respondent no. 3 (Annexed as Annexure No. 1 to this writ petition).

ii. Issue a writ, order or direction in the nature of mandamus commanding /directing the respondent authority not to take any coercive measures against the petitioner."

At the very outset, Shri Udit Chandra, learned counsel for Purvanchal Vidyut Vitran Nigam Ltd. submits that the order impugned is already withdrawn by the department concerned on account of furnishing another opportunity to the petitioner and final assessment is to be made as per the provisions contained under the Electricity Supply code, 2005.

Considering the facts and circumstances and the statement of Shri Udit Chandra, learned counsel for the respondents, we are not inclined to proceed further in the matter. Needless to say, it is always open to the department concerned to proceed in the matter strictly in accordance with law and as per the Electricity Act as well as Electricity Supply Code, 2005.

The writ petition stands **disposed of** accordingly.

Order Date :- 14.2.2023 /Bhanu